Superior Court of the State of California
County of Orange

TENTATIVE RULINGS

DEPARTMENT C27

JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

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TENTATIVE RULINGS
July 20, 2026

	Case Name	Tentative
103	2023-01360760 Concord Investment Counsel Inc. vs. Depaolo & May Strategic Wealth LLC.	**Motion to Be Relieved as Counsel of Record** Steven C. Smith, Michael H. Cooper, and Smith LC's Motion to be relieved as counsel for Plaintiff Concord Investment Counsel Inc. is denied. This matter was ordered to binding arbitration on July 1, 2024 and this action was stayed pending resolution of the arbitration proceeding. (ROA 37.) Accordingly, this motion should be brought before the arbitrator. *SWAB Financial, LLC v. E*Trade Securities, LLC* (2007) 150 Cal.App.4th 1181, 1200-1201. Moving party is ordered to give notice.
104	2020-01129890 Farah vs. Dearmin	**1. Motion to Tax Costs of Nicholas Dutra** **2. Motion to Tax Costs of Mitchell Zogob** **3. Motion to Tax Costs of Therese Harris and Grace C. Dearmin** **4. Order to Show Cause re: Dismissal** **<u>Motion to Tax Costs of Nicholas Dutra</u>** Plaintiffs Michael P. Farah's and The Eric Wyser Charitable Trust's unopposed motion to strike or tax the costs memorandum filed by Defendant Nicholas Dutra is granted in part and denied in part. The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subd. (c).) If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761,774-776; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]; see *Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765, 777-778 [prevailing defendant properly awarded its photocopying costs which were supported by invoice from copy company, when plaintiffs failed to present any evidence showing that copying could have been done for less]. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Assn., supra*, 19 Cal.App.4th at pp. 774-776.)

		On 3/12/26, Defendant Nicholas Dutra filed and served his memorandum of costs. Defendant did not attach a Memorandum of Costs Worksheet (Form MC-011). He did attach an "Activities Export" listing various fees presumably incurred. Plaintiffs argue that the memorandum should be stricken in its entirety because Defendant did not include the Worksheet which they contend is required. There is no legal authority that supports that the Worksheet is required in addition to the verified Memorandum on Form MC-010. (See CRC, Rule 3.1700.) Supporting documentation of the claimed costs is not required until and unless the costs have been put in issue via a motion to strike or tax the costs. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) Therefore, the motion to strike all costs in their entirety based on Defendant's failure to file the worksheet is denied. As for specific costs items, the Court taxes $3,283.40 from Defendant's claimed filing and motion fees and $2,840.93 representing the costs claimed as "Other." Plaintiffs contend that only $620 has been shown as proper filing fees. The Court has reviewed the "Activities Export" attached to Defendant's memorandum of costs, and finds that there are additional proper filing fees claimed, resulting in a total of $873.90. The Court agrees that the "Other" category of $2,840.93 should be stricken. Defendant did not file an opposition and thus fails to meet his burden to show that these costs were reasonable and necessary. Based on the foregoing, the Court taxes Defendant Nicholas Dutra's costs in the amount of $6,124.33, and allows $2,792.02. Plaintiffs shall give notice. **<u>Motion to Tax Costs of Mitchell Zogob and Motion to Tax Costs of Therese Harris and Grace C. Dearmin</u>** Tentative rulings issued by Court 7-13-2026.
105	2025-01468377 Wayland vs. General Motors, LLC	**Demurrer to Amended Complaint** Defendant General Motors, LLC's unopposed demurrer to Plaintiff Mark Wayland's First Amended Complaint is sustained with 15 days leave to amend. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v.*

Superior Court (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

Defendant contends that all of Plaintiff's claims are time-barred by the "statute of repose" in Code Civ. Proc., § 871.21, and the statutes of limitations in Cal. U. Com. Code, § 2725 and Code Civ. Proc., § 338(d).

The Court is not persuaded by Defendant's arguments regarding Code Civ. Proc., § 871.21. In particular, retroactive application of this statute limiting a plaintiff's time to file suit would seem to violate their due process rights pursuant to *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122-23. There is no indication in the legislative history of § 871.21 that application should be retroactive; it would thus seem that the statute should only be applied prospectively. (See *Evangelatos v. Superior Ct.* (1988) 44 Cal. 3d 1188, 1193–94; *Quarry v. Doe I*, (2012) 53 Cal.4th 945 ("In construing statutes, there is a presumption against retroactive application unless the Legislature plainly has directed otherwise by means of express language of retroactivity or ... other sources that provide a clear and unavoidable implication that the Legislature intended retroactive application."); *Niagara Fire Ins. Co. v. Cole* (1965) 235 Cal. App. 2d 40, 42–43 ("a statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations.... Even when applied prospectively, the claimant must be allowed a reasonable time within which to proceed with his cause of action.") (citation omitted).)

Notwithstanding this, the Court does agree with Defendant that Plaintiff's allegations are not sufficient to support tolling or application of the delayed discovery rule.

Cal. U. Com. Code, § 2725 provides that the statute of limitations for Plaintiff's Song-Beverly claims (i.e., "an action for breach of any contract for sale") is four years. (See *Mexia v. Rinker Coat Co., Inc.* (2009) 174 Cal.App.4th 1297 ["the statute of limitations for an action for breach of warranty under the Song–Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code . . . '(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered"].)

Where a complaint on its face appears time-barred, the plaintiff must affirmatively "plead around" the statute of limitations defense. (*See, e.g., Lewis v. Security-First Nat. Bank of Los Angeles* (1943) 58 Cal. App. 2d 827, 829 [The delayed discovery rule is not satisfied by the mere allegation that plaintiff did not discover the fraud prior to a designated date.]) Moreover, the plaintiff must plead those facts with particularity, like he would a fraud cause of action. (*Weinstock v. Eissler* (1964) 224 Cal.App.2d 212, 227-228 ["plaintiff must state in his complaint when the discovery was made, the circumstances under which it was made, and facts to show that [he] is not at fault for not having made an earlier discovery, and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry."])

		Plaintiff alleges in the FAC that he purchased the subject vehicle more than ten years ago, on 6/7/15. (FAC, ¶ 6.) Plaintiff alleges a number of times starting from October 11, 2016 to April 23, 2025, during which he presented the vehicle for various repairs. (FAC, ¶¶ 13-17.) Plaintiff alleges that he discovered Defendants' wrongful conduct shortly before filing the Complaint. (FAC, ¶ 36.) He alleges that the statute of limitations has been tolled due to equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling. (FAC, ¶ 35.) The allegations are extremely general and not pled with particularity as required in *Weinstock, supra,* 224 Cal.App.2d at 227-228. Plaintiff describes his repair attempts for issues with the exhaust pipe, the radio, and the brakes. However, Plaintiff's primary issue with the vehicle seems to be an engine defect. (FAC, ¶¶ 9, 74.) Plaintiff does not state any facts regarding the circumstances of his discovery of the engine defect and Defendant's alleged wrongful conduct with respect to the same. With respect to the fraud cause of action, the statute of limitations is only three years pursuant to Code Civ. Proc. § 338(d). Plaintiff alleges in a somewhat conclusory fashion that Defendant concealed material facts about the vehicle's alleged defects, intending to induce Plaintiff to purchase it. (FAC ¶¶ 73-82.) Plaintiff fails to specifically plead facts to circumvent Defendant's statute of limitations defense. Accordingly, based on the foregoing, the Court sustains Defendant's demurrer in its entirety with leave to amend. Defendant General Motors, LLC shall give notice.
106	2025-01482732 Cylinder Enterprises, Inc. vs. City of Garden Grove	**1. Demurrer to Amended Complaint** **2. Case Management Conference** The general demurrer by Defendant City of Garden Grove ("Defendant") to the first and second causes of action alleged in the First Amended Complaint ("FAC") filed by Plaintiff Cylinder Enterprises, Inc. dba Finish Line Towing and Transport ("Plaintiff") is sustained without leave to amend. Defendant's unopposed requests to take judicial notice of Defendant's municipal codes are granted. (Evid. Code, § 452, subd. (b); *Madrigal v. City of Huntington Beach* (2007) 147 Cal.App.4th 1375, 1384 [Taking judicial notice of Municipal Code.].) <u>First cause of action for breach of contract</u> "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff did not allege sufficient facts to show Defendant breached the agreement. Plaintiff contends that Plaintiff's addition of paragraph 28 addresses the Court's ruling on Defendant's demurrer to the first cause of action as alleged in Plaintiff's initial complaint. Plaintiff contends section 17.2 is ambiguous as to whether Defendant would pay Plaintiff for all charges incurred at the time of termination.

		"Where a written contract is pleaded by attachment to and incorporation in a complaint, and where the complaint fails to allege that the terms of the contract have any special meaning, a court will construe the language of the contract on its face to determine whether, as a matter of law, the contract is reasonably subject to a construction sufficient to sustain a cause of action for breach." (*Davies v. Sallie Mae, Inc.* (2008) 168 Cal.App.4th 1086, 1091, citing *Hillsman v. Sutter Community Hospitals* (1984) 153 Cal.App.3d 743, 749-750.) If the facts "appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence." (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.) "[A]n ambiguity is said to exist when, in the light of the circumstances surrounding the execution of an instrument, the written language is fairly susceptible of two or more constructions." (*In re Estate of Russell* (1968) 69 Cal.2d 200, 211 [internal citations omitted].) "The language of a contract is to govern its interpretation, if the language is clear and explicit, and does not involve an absurdity." (Civ. Code, § 1638.) "The whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other." (Civ. Code, § 1641.) "[W]here an ambiguous contract is the basis of an action, it is proper, if not essential, for a plaintiff to allege its own construction of the agreement. So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must accept as correct plaintiff's allegations as to the meaning of the agreement." (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239, citing *Marina Tenants Assn. v. Deauville Marina Development Co.* (1986) 181 Cal.App.3d 122, 128.) However, "Courts will not adopt a strained or absurd interpretation in order to create an ambiguity where none exists." (*Alameda County Flood Control & Water Conservation Dist. v. Department of Water Resources* (2013) 213 Cal.App.4th 1163, 1180, citing *Reserve Insurance Co. v. Pisciotta* (1982) 30 Cal.3d 800, 807.) "'In the construction of a statute or instrument, the office of the Judge is simply to ascertain and declare what is in terms or in substance contained therein, not to insert what has been omitted, or to omit what has been inserted; and where there are several provisions or particulars, such a construction is, if possible, to be adopted as will give effect to all.'" (Code Civ. Proc., § 1858; see Civ.Code, § 1641['[t]he whole of a contract is to be taken together ...'].)" (*Id*.) Plaintiff alleged Defendant breached the agreement by failing to pay the invoices. (FAC, ¶ 26.) As the Court previously noted, although section 17.2 of the agreement states Plaintiff "shall be entitled to payment for services fully and adequately provided hereunder prior to the effective date of the termination," the section does not indicate from whom Plaintiff is entitled to compensation. (FAC, Exhibit 1, Pages 6-7, Section 17.2 [at pages 17-18 of the PDF].) In Plaintiff's FAC, Plaintiff alleges that section 17.2 of the agreement was understood, intended, and agreed to mean that Defendant would pay Plaintiff for storage fees to the date of the agreement's termination. (FAC, ¶ 28.) Plaintiff alleges section 17.2 is reasonably susceptible to the interpretation that Defendant is obligated to compensate Plaintiff for all services performed prior to the effective date of the termination. (*Id*.) Plaintiff also alleges that throughout the term of the agreement, Plaintiff consistently charged Defendant for storage charges. (*Id*.) However, the FAC does not allege Defendant ever paid Plaintiff any storage charges. Plaintiff also alleges the parties' course of

performance reflects their mutual understanding that storage services were complete only upon authorized release or transfer of the vehicle. (*Id*.) Plaintiff does not allege any course of conduct or any facts that would support Plaintiff's interpretation of this section to mean if Defendant terminated the agreement, Defendant would pay for the charges incurred.

As Defendant again points out, the agreement expressly provides Plaintiff shall be compensated by the vehicle owner. (FAC, Exhibit 1, Page 1, Section 3 [Plaintiff "shall be compensated as follows: [Plaintiff] may charge vehicle owners the amount(s) not to exceed those charges approved by the City…"], Page 28, Section 24.2 of Attachment A [It shall be Plaintiff's "responsibility to collect payment for services it renders under the Agreement from the vehicle owners, and [Defendant] shall not be responsible in any way whatsoever for payment of these charges."].) In addition, Section 18.2 of Attachment A provides, "Notwithstanding any other term or condition herein, in responding to any call from the police department, the CONTRACTOR shall have no claim whatsoever against the CITY or any right to recover from the CITY for the cost of any of the services it renders in the performance of the contract. The CONTRACTOR shall look solely and exclusively to the owner of the vehicle towed, impounded, or stored for payment of the services provided by the CONTRACTOR." (*Id*., Exhibit 1, Attachment A, Section 18.2.)

Section 18.2 expressly provides that Defendant is not liable for any of the costs associated with Plaintiff's services. Plaintiff contends this section, as well as section 3 and 24.2 only applies to Plaintiff's compensation prior to termination. (Opposition, 6:24-25.) However, there is no indication in the language of the agreement that establishes these provisions only apply pre-termination. Plaintiff has not shown any ambiguity as to whether Defendant agreed to pay Plaintiff's invoices after termination. Section 17.2 only states Plaintiff is entitled to payment for its services, but Section 3 of the agreement and sections 18.2 and 24.2 of the Attachment to the agreement expressly state Plaintiff should seek payment from the vehicle owners and Defendant is not responsible for payment of the charges Plaintiff seeks in the FAC. Despite Plaintiff's allegation that the parties had a different understanding, the express terms of the agreement do not support such an understanding, nor does any ambiguity exist. Accordingly, the demurrer is sustained.

Although Plaintiff requests leave to amend, Plaintiff did not make any showing that Plaintiff is able to properly amend this cause of action to state a cause of action for breach of contract. Accordingly, Plaintiff's request for leave to amend is denied.

<u>Second cause of action for common counts: account stated</u>
"The only essential allegations of a common count are '(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.'" (*Farmers Insurance Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460.)

"The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due." (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600.)

An account stated is an agreement, based on prior transactions between the parties, that the items of an account are true and that the balance struck is due and owing. (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491.) To be an account stated, it must appear that at the time of the statement an indebtedness from one party to the other existed, that a balance was then struck and agreed to be the correct sum owing from the debtor to the creditor,

		and that the debtor expressly or impliedly promised to pay to the creditor the amount thus determined to be owing. (*Id*.) Plaintiff did not allege sufficient facts to state this cause of action. Plaintiff alleges Plaintiff invoiced amounts to Defendant regarding vehicles Plaintiff towed and stored, and that Defendant accepted the amounts; however, there is no allegation that Defendant acknowledged Defendant was responsible for paying the amount (i.e. that Defendant was the debtor). Plaintiff alleges Defendant agreed to pay the amounts pursuant to the terms of the agreement. (FAC, ¶¶ 37-40.) However, as discussed above, the agreement does not include any express agreement by Defendant to pay. Rather, the agreement expressly provides Defendant is not responsible for payment for services Plaintiff provides under the agreement. (*Id*., Exhibit 1, Attachment A, Section 18.2.) In addition, although Plaintiff alleges there is an implied agreement to pay, Plaintiff does not allege facts to support such an implied agreement, especially in light of section 18.2 in the attachment to the agreement. Plaintiff did not allege sufficient facts to show the relationship of a debtor and creditor. Accordingly, the demurrer is sustained. Although Plaintiff requests leave to amend, Plaintiff did not make any showing that Plaintiff is able to properly amend this cause of action to state a cause of action for account stated. Accordingly, Plaintiff's request for leave to amend is denied. In light of this ruling, the Case Management Conference is vacated. Defendant shall give notice.
107	2024-01444402 Orona vs. Efficient Builders Corp.	**1. Motion to Compel Arbitrations** **2. Review Hearing** The unopposed motion by Defendant Solar Mosaic LLC ("Mosaic") for an order compelling arbitration and staying this action as to Mosaic is granted. The action as to Mosaic is stayed. (Code Civ. Proc., § 1281.4.) The Court sets an ADR Review Hearing for July 26, 2027 at 10:00 a.m. in Department C27. Should Plaintiff appear, Plaintiff should be prepared to address the status of service on Defendant Efficient Builders Corp. Should Plaintiff not appear, the Court sets an Order to Show Cause as to why Defendant Efficient Builders Corp. should not be dismissed for January 4, 2027 at 10:00 a.m. in Department C27. In the event Plaintiff fails to serve Defendant Efficient Builders Corp. by this date, the Court will dismiss the action against such Defendant pursuant to CCP section 583.420(a)(1). Mosaic shall give notice of this ruling. The clerk is ordered to give notice of the OSC.
108	2025-01469228 Little vs. Volkswagen Group of America, Inc	**1. Motion for Attorney Fees** **2. Order to Show Cause re: Dismissal on Settled Case** The unopposed motion by Plaintiff Evevon Lynette Little ("Plaintiff") for attorneys' fees is granted. However, the Court denies the request for a multiplier. Additionally, the Court denies the request of $4,000 in anticipated fees for reviewing the opposition, preparing a reply, and attending the hearing. The motion was not opposed.

		The Court awards the amount of $13,591.00 in attorneys' fees. Defendant is ordered to pay Plaintiff the sum of $13,591.00. The OSC re: dismissal is continued to December 21, 2026 at 10:00 a.m. in Department C27. Plaintiff is ordered to appear if this matter has not been dismissed. Plaintiff is ordered to give notice.
109	2025-01526045 Freeman vs. Massage Envy Franchising, LLC	**1. Demurrer to Complaint** **2. Motion to Strike Portions of Complaint** Before the Court is Defendant Sheila Horowitz's Demurrer and Motion to strike parts of Plaintiff Brittany Freeman's Complaint. Per the Notice of Plaintiff's counsel, counsel for both parties met and conferred on 7/7/26 (ROA 91.) In the Notice, Counsel for Plaintiff indicates that as a result of the meet and confer effort, Plaintiff agrees to file a first amended complaint addressing the issues raised in the Motion. Thus, the Court finds the Demurrer and Motion to strike moot.
110	2025-01520411 Smith vs. Canyon Glen Community Association	**1. Demurrer to Amended Complaint** **2. Motion to Strike Portions of Complaint** **3. Case Management Conference** Defendants Canyon Glen Community Association ("HOA"), Powerstone Property Management ("Manager"), and Rene Decker's ("Decker") Demurrer to Plaintiff James Smith's ("Plaintiff") First Amended Complaint is sustained in part and overruled in part. The demurrers to the second cause of action for breach of fiduciary duty and the fourth cause of action for gross negligence, as alleged against HOA, are overruled. The remainder of the demurrer is sustained with 15 days leave to amend. <u>1st COA for Breach of Contract & 3rd COA for Breach of the Implied Covenant</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) The demurrer to the breach of contract claim is sustained, because Plaintiff has failed to allege facts showing how HOA materially breached the settlement agreement by sending the (second) check via mail approximately two months after the agreement was entered. Additionally, Plaintiff does not allege any damages from the delay of receiving the (second) check. Thus, the demurrer to the breach of contract claim is sustained. The demurrer to the breach of implied covenant claim is sustained, because it is premised entirely on the same breach alleged as a breach of contract. (See FAC at ¶ 86.) The breach of the implied covenant must involve "something beyond breach of the contractual duty itself." (*Tilbury Constructors, Inc. v. State Comp. Ins. Fund* (2006) 137 Cal.App.4th 466, 474; see *Howard v. American National Fire Ins. Co.* (2010) 187 Cal.App.4th 498, 528.) The demurrer to both claims are sustained with leave to amend.

2nd COA for Breach of Fiduciary Duty

"The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach." (*Knox v. Dean* (2012) 205 Cal.App.4th 417, 432.) Here, Plaintiff alleges HOA "had a fiduciary duty to them [sic] to maintain the sewer lines properly, as well as the pipes underneath Plaintiff's unit." (FAC at ¶ 79.) Plaintiff also alleges HOA "had a fiduciary duty to maintain the pipes in the common areas and underneath the building and failed to do so." (FAC at ¶ 81.)

Defendants contend Plaintiff's allegations are "contradicted by the Water Intrusion Policy," which Plaintiff admits states, "it is the owner's responsibility to maintain pipes UNDERNEATH their unit," although Plaintiff believes is "is clearly the responsibility of the HOA." (Dem. at p. 13.)

A "homeowners association has a fiduciary relationship with its members-at least with respect to dealing with the homeowner's unit," the scope of that duty depends on its source. "The duties and powers of a homeowners association are controlled both by statute and by the association's governing documents." (*Ostayan v. Nordhoff Townhomes Homeowners Assn., Inc.* (2003) 110 Cal.App.4th 120, 127.)

The "Water Intrusion Policy" states: "The Canyon Glen Community Association ('Association') is responsible for the maintenance, repair and replacement of water, waste and sewer pipes and plumbing that serve more than one unit, or, that are located outside the perimeter walls, floors or ceilings surrounding a unit. (CC&Rs, Section 9.01(j))." (ROA 2, Exh. A at p. 1.) Because Plaintiff has alleged that at least some of the pipes are in "common areas," the Court overrules the demurrer to the breach of fiduciary duty claim. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1681-1682 [a demurrer "does not lie to a portion of a cause of action"].)

4th COA for Gross Negligence

"Gross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages." (*Rosencrans v. Dover Images, Ltd.* (2011) 192 Cal.App.4th 1072, 1082.) "However, to set forth a claim for 'gross negligence' the plaintiff must allege extreme conduct on the part of the defendant," in that the conduct alleged "must rise to the level of "either a ' " 'want of even scant care' " ' or ' " 'an extreme departure from the ordinary standard of conduct." (*Ibid.*)

Here, Plaintiff's gross negligence claim against HOA is also premised on its "duty to repair and maintain the sewer lines around Plaintiff's unit" and the breach of that duty. (FAC at ¶ 90.) Additionally, Plaintiff alleges Manager and Decker breached "a duty to manage the property consistent with their contract with [HOA]." (FAC at ¶ 91.)

For the reasons, above, the Court overrules the demurrer brought by HOA. Plaintiff is alleging not only a failure to maintain the pipes underneath his unit, but also in the "common areas."

As to Manager and Decker, however, the demurrers shall be sustained with leave to amend. Plaintiff alleges a duty Manager and Decker owed to HOA, "consistent with their contract with [HOA]," but Plaintiff fails to allege facts showing they owed a tort duty to him.

5th COA for Intentional Infliction of Emotional Distress

The elements of an IIED claim are: "(1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." The "outrageous" conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160–161.) "Liability for intentional infliction of emotional distress ' "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Kelley v. The Conco Companies* (2011) 196 Cal.App.4th 191, 215, citation omitted.) Severe emotional distress refers to "emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051, citation omitted.)

Here, Plaintiff alleges he "has been trying to get the matter resolved for almost two years with no response by Defendant"; and, "the constant uncertainty regarding the sewer lines and the possibility of backfill exploding into Plaintiff's unit has caused constant stress to Plaintiff." (FAC at ¶¶ 98-99.) These allegations do not rise to a showing of "outrageous conduct" by the HOA that was *intended or designed to* cause Plaintiff severe, emotional distress. "Intentional infliction of emotional distress requires conduct which is *especially calculated to cause* and does cause the claimant mental distress of a very serious nature." (*Coon v. Joseph* (1987) 192 Cal.App.3d 1269, 1273, emphasis in original ["Although it was evident that defendants had caused plaintiffs untold distress, they had not acted with the purpose of causing them emotional distress"].) The allegation that HOA has been slow to respond or has not responded in a manner satisfactory to Plaintiff may be an "annoyance" or a "petty oppression," but it does not amount to conduct that is " so extreme as to exceed all bounds of that usually tolerated in a civilized society." Neither does the "constant stress" described by Plaintiff.

The demurrer to the IIED claim is sustained with leave to amend.

<u>6th COA for Fraud, 7th COA for Conspiracy to Commit Fraud, & 9th COA for Intentional Misrepresentation</u>

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.)

Plaintiff's fraud claim, here, is based on the allegations that, "Defendants, by their constant and inexplicable tree planting program, were trying to cover up deteriorating sewer lines which it was incumbent upon Defendants to maintain." (FAC at ¶ 104.) Plaintiff further alleges "Defendants attempted to reach a 'settlement agreement' under false pretenses, trying to assign liability to Plaintiff for the maintenance of underground pipes, sewer lines and gas lines that were part of Defendants' responsibility." (FAC at ¶ 106.) Under the intentional misrepresentation claim, Plaintiff adds: "The emails attached show that Defendant Powerstone was promising it would seek the HOA to deal with the water retention issues and never did"; [HOA] was tasked to maintain the common areas and represented to Plaintiff repeatedly that it was his problem, not that of the HOA, knowing better that this was not the case; and, Defendants also stated that the tree plantings were there to create shade whereas these tree plantings were done to obstruct investigation into failed maintenance of these lines, which was the responsibility squarely of Defendants."

These allegations are not sufficient to state a claim for fraud. Plaintiff fail to plead fraud with the requisite specificity, because it is unclear what the fraudulent misrepresentation was, who made it, and who it was made to. Referring the Court to see the "emails attached" is not a substitute for proper pleading.

Because Plaintiff's fraud claims fail, so, too, does his claim for "conspiracy to commit fraud." Civil conspiracy is "not an independent cause of action," but a "theory of co-equal legal liability under which certain defendants may be held liable for 'an independent civil wrong.'" (*Navarrete v. Meyer* (2015) 237 Cal.App.4th 1276, 1291.) "Under a conspiracy theory of recovery, liability depends on the actual commission of a tort." (*Ibid.*)

The demurrers to all three claims are sustained with leave to amend.

<u>8th COA for Violation of Davis Stirling Act § 4775</u>
Common interest developments are governed by the Davis-Stirling Common Interest Development Act. (Civ. Code, § 4000; *Retzloff v. Moulton Parkway Residents' Assn., No. One* (2017) 14 Cal.App.5th 742, 748.) Within the Act, section 4775 states, in relevant part, "Except as provided in paragraph (4), unless otherwise provided in the declaration of a common interest development, the association is responsible for repairing, replacing, and maintaining the common area." (Civ. Code, § 4775, subd. (a)(1).) In turn, paragraph (4) states: "Unless otherwise provided in the declaration of a common interest development, the owner of each separate interest is responsible for maintaining the exclusive use common area appurtenant to that separate interest and the association is responsible for repairing and replacing the exclusive use common area." (Civ. Code, § 4775, subd. (a)(4).)

Defendants demur to this claim, because (among other grounds) Plaintiff has failed to include the certificate required under section 5950 of the Act, which states:

> (a) At the time of commencement of an enforcement action, the party commencing the action shall file with the initial pleading a certificate stating that one or more of the following conditions are satisfied:
> (1) Alternative dispute resolution has been completed in compliance with this article.
> (2) One of the other parties to the dispute did not accept the terms offered for alternative dispute resolution.
> (3) Preliminary or temporary injunctive relief is necessary.
> (Civ. Code, § 5950, subdivision (a).)

The failure to file a certificate pursuant to subdivision (a) "is grounds for a demurrer or a motion to strike unless the court finds that dismissal of the action for failure to comply with this article would result in substantial prejudice to one of the parties." (Civ. Code, § 5950, subd. (b).)

In his opposition, Plaintiff does not deny that his pleading is not accompanied by the requisite declaration. However, he claims the demurrer should be overruled because the court should find that dismissal of the action would result in substantial prejudice. (Opp'n at p. 10.) This argument is not persuasive, because his claims for gross negligence and breach of fiduciary duty are based on the same allegations. The dismissal of this claim does not necessarily result in a dismissal of the entire action. The demurrer is sustained with leave to amend.

<u>10th COA for Violation of California Civil Code § 3479</u>
"Nuisances are defined by statute: 'Anything which is injurious to health ... or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property ... is a nuisance.'" (*Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 402, citing Civ. Code, § 3479.) A nuisance may be public or private. "A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal." (*Id.*, citing Civ. Code, § 3480.) As "a general rule, only public prosecutors authorized by statute may sue for a public nuisance on behalf of the community." (*Rincon Band of Luiseno Mission Indians etc. v. Flynt* (2021) 70 Cal.App.5th 1059, 1100.) However, Civil Code section 3493 permits a private person to maintain an action for public nuisance "if it is specially injurious to himself, but not otherwise." (Civ. Code, § 3493.)

Here, Plaintiff alleges "the obstruction of the repair of the sewer lines risks causing a potential effusion of sewer to the HOA residents, causing a public nuisance." (FAC at ¶ 130.) Plaintiff has not alleged any facts showing a nuisance "which affects at the same time an entire community or neighborhood, or any considerable number of persons." Rather, in his FAC, Plaintiff expressly alleges that he "has noted that there are several issues regarding the underground pipes in the common areas *around his unit*"; and, that he "lives in a unit *that overlooks the gas line*, a fact that is extremely relevant to the issues." (FAC at ¶¶ 11, 14, emphasis added.) As such, the demurrer is sustained with leave to amend.

<u>11th COA Injunctive relief.</u>
By his eleventh "cause of action," Plaintiff "requests the Court to provide him injunctive relief by ordering Defendant HOA to maintain the sewer lines," to enjoin the HOA "from any further tree planting until the situation regarding the sewer lines can be properly assessed," and "to remove the trees covering up gas and sewer lines." (FAC at ¶¶ 133-135.)

However, Plaintiff's request for injunctive relief is not tethered to any cause of action. "Injunctive relief is a remedy, not a cause of action. A cause of action must exist before a court may grant a request for injunctive relief." (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65, citations omitted.) The demurrer to the injunctive relief "claim" is sustained with leave to amend.

Plaintiff shall file and serve his amended pleading within 15 days of the notice of ruling.

In light of the ruling on the demurrer, Defendants' motion to strike (ROA 23) is moot.

The case management conference is continued to February 8, 2027 at 10:00 a.m. in Department C27.

Defendants shall give notice of the ruling.